

Finding an Attorney — Form 15400 / EV Credit / NC UDTA

*Leads to vet — **not endorsements**. These are categories and names surfaced in public research; confirm experience, fees, and fit before hiring. Most consumer attorneys offer a **free initial consult** and work on **contingency** for UDTA claims (because § 75-16.1 shifts fees to the defendant).*

Avoid: dealer-side firms

Auto firms like **Bellavia Cohen** / **DealerLaw.com** represent **dealerships**, not consumers — they'd be on Tesla's side. Not a fit.

Category 1 — National consumer class-action firms

For the "be first to file a 15400 class" angle (Tesla + Rivian buyers nationwide hit the same failure). - **Hagens Berman** (hbsslaw.com) — large nationwide consumer/auto class-action firm; already litigating EV-program money against Ford. Takes cases nationwide, contingency. - Find more via the directories below ("consumer class action," "auto fraud").

Category 2 — NC consumer-protection / UDTA attorneys

For your individual § 75-1.1 claim (\$7,500 → treble \$22,500 + fees). - **Horton & Mendez** (hortonmendez.com) — markets NC unfair/deceptive trade practices work. (Vet for EV/dealer-reporting experience.) - Find more via the NC Bar referral and NACA below.

Category 3 — Directories (best way to find + compare)

- **NACA — National Association of Consumer Advocates:** consumeradvocates.org/find-an-attorney (filter by state + auto fraud/consumer).
- **NC State Bar Lawyer Referral Service:** ncbar.org.
- **Avvo / Justia / Martindale** — filter "consumer protection" / "auto dealer fraud," North Carolina.

Questions for the consult

1. Do you take § 75-1.1 cases on **contingency**?
2. Have you handled **dealer-failure-to-report** / **EV tax credit** matters?
3. **Individual** UDTA claim or a **class** of Tesla/Rivian buyers?
4. How does Tesla's **arbitration clause** (and its refuse-to-pay-fees waiver angle) change strategy?
5. What's realistically recoverable — and what's the timeline?

Intake packet to bring

- `case-timeline.md` (the summary), the **completed Form 15400**, IRS Notice CP23, the Tesla Order Agreement, and the March/June 2026 Tesla correspondence.

Cover Email — Attorney Outreach

*Send to consumer-protection / auto-fraud attorneys (see [attorney-search.md](#)). Attach **Brizzi-Tesla-Case-File.pdf**. Keep it short — attorneys skim intake emails. Send individually (not one mass CC).*

Subject: Consumer claim — Tesla certified my \$7,500 EV credit, then never filed it (NC UDTPA)

Dear [Attorney / Firm name],

I'm seeking representation (or a consultation) on a consumer claim against Tesla, Inc., and I think it may also be a viable class.

In August 2025 I bought a new Tesla Model Y in Raleigh, NC. I fully qualified for the \$7,500 federal Clean Vehicle Credit (married filing jointly, MAGI \$212,363; vehicle under the cap). **At delivery, Tesla's general manager completed and gave me the IRS Clean Vehicle Seller Report (Form 15400) certifying the \$7,500 credit — but Tesla never transmitted the matching time-of-sale report through the IRS Energy Credits Online portal.** Because that filing was never completed, the IRS disallowed my credit (Notice CP23, June 2026) and billed me the \$7,500 plus interest. Tesla gave me three inconsistent explanations, refused to share its records, and has not corrected the filing despite written demands.

I believe this supports a North Carolina UDTPA claim (§ 75-1.1) for treble damages and attorney's fees, and possibly negligent misrepresentation. The same failure is hitting other EV buyers (Tesla and Rivian), so a class may be appropriate.

Time-sensitive: my IRS deadline to dispute is August 7, 2026.

I've attached a complete case file (completed Form 15400, the IRS notice, the order agreement, my correspondence with Tesla, and a damages/strategy summary). Could we schedule a brief consultation? I'm hoping to work on a contingency basis.

Thank you,

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Attachment: Brizzi-Tesla-Case-File.pdf